

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICKIE WILLIAMS and STACY ANN EDWARDS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY,
POLICE DEPARTMENT, P.O. MARIO GIORDANO,
KEVIN SUAREZ and CHANCE DEESPINA,

Defendants.
-----X

Index No.:

Date Filed:

Plaintiff designates
KINGS COUNTY as the
place of trial

The basis of venue
is the **Situs** of the
Accident

SUMMONS

Plaintiff resides at
706 E. 53rd Street
Brooklyn, NY 11203

To the above-named Defendant(s)

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 17, 2014

Defendant' Address:
The City of New York
100 Church Street
New York, New York

NYCPD
P.O. MARIO GIORDANO
1 Police Plaza
New York, New York
Kevin Suarez
1412 31st Road
Astoria, NY 11106
Chance Deespina
6 Hampton Street
Staten Island, NY 10304

FEINSTEIN & FEINSTEIN, ESQS.
Attorneys for Plaintiff

By: 
CHARLES FEINSTEIN, ESQ.
61 Broadway, suite 2820
New York, New York 10006
(212) 363-3000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICKIE WILLIAMS and STACY ANN EDWARDS,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. MARIO GIORDANO,
KEVIN SUAREZ and CHANCE DEESPINA,

Defendants.

-----X

Plaintiff, by their attorneys, FEINSTEIN &
FEINSTEIN, ESQS., as and for their verified Complaint
herein, respectfully sets forth and alleges the following:

AS AND FOR A FIRST CAUSE OF ACTION:

1. That at all times hereinafter mentioned,
the defendant, THE CITY OF NEW YORK, was a Municipal
Corporation duly existing under and by virtue of the laws of
the State of New York.

2. That at all times hereinafter mentioned,
the defendant, THE CITY OF NEW YORK, was a corporation doing
business in the State of New York.

3. That at all times hereinafter mentioned,
the defendant, NEW YORK CITY POLICE DEPARTMENT, was a
corporation duly existing under and by virtue of the laws of

the State of New York.

4. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was a corporation doing business in the State of New York.

5. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was the titled owner of a certain motor vehicle bearing New York State registration #FPB5933 for the year 2013.

6. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was the registered owner of a certain motor vehicle bearing New York State registration #FPB5933 for the year 2013.

7. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was the titled owner of a certain NEW YORK CITY POLICE DEPARTMENT motor vehicle bearing New York State registration #FPB5933 for the year 2013.

8. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was the registered owner of a certain NEW YORK CITY POLICE DEPARTMENT motor vehicle bearing New York State registration #FPB5933 for the year 2013.

9. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its agents,

servants and/or employees managed said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

10. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees controlled said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

11. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, its agents, servants and/or employees maintained said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

12. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT was an agency of the defendant THE CITY OF NEW YORK.

13. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was the titled owner of a certain motor vehicle bearing New York State registration #FPB5933 for the year 2013.

14. That at all times hereinafter NEW YORK CITY POLICE DEPARTMENT, was the registered owner of a certain motor vehicle bearing New York State registration #FPB5933 for the year 2013.

15. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees managed said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

16. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees controlled said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

17. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees maintained said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

18. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

19. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, in the course and scope of his employment.

20. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, in the course and scope of his employment with the defendant THE CITY OF NEW YORK.

21. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, in the course and scope of his employment with the defendant NEW YORK CITY POLICE DEPARTMENT.

22. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, with the permission and consent, express and/or implied, of the titled owner of said vehicle.

23. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, with the permission and consent, express and/or implied, of the registered owner of said vehicle.

24. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933

for the year 2013, with the permission and consent, express and/or implied, of the defendant THE CITY OF NEW YORK.

25. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO operated said motor vehicle bearing New York State registration #FPB5933 for the year 2013, with the permission and consent, express and/or implied, of the defendant NEW YORK CITY POLICE DEPARTMENT.

26. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO managed said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

27. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO maintained said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

28. That at all times hereinafter mentioned, the defendant P.O. MARIO GIORDANO controlled said motor vehicle bearing New York State registration #FPB5933 for the year 2013.

29. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, was the titled owner of a certain motor vehicle bearing New York State registration #GEW1520 for the year 2013.

30. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, was the registered owner of a certain motor vehicle bearing New York State registration #GEW1520 for the year 2013.

31. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

32. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, maintained said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

33. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, managed said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

34. That at all times hereinafter mentioned, the defendant, KEVIN SUAREZ, controlled said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

35. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

36. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the

year 2013, in the course and scope of his employment.

37. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013, with the permission and consent, express and/or implied, of the titled owner of said vehicle.

38. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013, with the permission and consent, express and/or implied, of the registered owner of said vehicle.

39. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA was employed by the defendant KEVIN SUAREZ.

40. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013 in the course and scope of his employment.

41. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA operated said motor vehicle bearing New York State registration #GEW1520 for the year 2013 in the course and scope of his employment for the defendant KEVIN SUAREZ.

42. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA managed said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

43. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA maintained said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

44. That at all times hereinafter mentioned, the defendant CHANCE DEESPINA controlled said motor vehicle bearing New York State registration #GEW1520 for the year 2013.

45. That at all times hereinafter mentioned, the roadways known as Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York, were public roadways and thoroughfares in common use by the residents of the State of New York, and others.

46. That at all times hereinafter mentioned, LOUISE WARDEN-FRANCO was the titled owner of a certain motor vehicle bearing New York State registration #GHJ7090 for the year 2013.

47. That at all times hereinafter mentioned, LOUISE WARDEN-FRANCO was the registered owner of a certain motor vehicle bearing New York State registration #GHJ7090 for the year 2013.

48. That at all times hereinafter mentioned, LEROY ATKINS operated said motor vehicle bearing New York State registration #GHJ7090 for the year 2013.

49. That at all times hereinafter mentioned, the roadways located on Atlantic Avenue in the vicinity of

Van Siclen Avenue in the County of Kings, City and State of New York, were public roadways and thoroughfares in common use by the residents of the State of New York, and others.

50. That on the 21st day of August, 2013, the plaintiff RICKIE WILLIAMS was a passenger in the motor vehicle owned by LOUISE WARDEN-FRANCO bearing New York State registration #GHJ7090 for the year 2013.

51. That on the 21st day of August, 2013, the plaintiff RICKIE WILLIAMS was a passenger in the motor vehicle operated by LEROY ATKINS bearing New York State registration #GHJ7090 for the year 2013.

52. That on the 21st day of August, 2013, the plaintiff STACY ANN EDWARDS was a passenger in the motor vehicle owned by LOUISE WARDEN-FRANCO bearing New York State registration #GHJ7090 for the year 2013.

53. That on the 21st day of August, 2013, the plaintiff STACY ANN EDWARDS was a passenger in the motor vehicle operated by LEROY ATKINS bearing New York State registration #GHJ7090 for the year 2013.

54. That on the 21st day of August, 2013, the defendant, P.O. MARIO GIORDANO, was operating his said motor vehicle over and along Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New

York.

55. That on the 21st day of August, 2013, the defendant, CHANCE DEESPINA, was operating her said motor vehicle over and along Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York ork.

56. That on the 21st day of August, 2013, the the motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein was proceeding over and along Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

57. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendants.

58. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendants upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

58(a). That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendants and with the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein.

59. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendants and with the said motor vehicle of the plaintiff, RICKIE WILLIAMS and STACY ANN EDWARDS, upon Atlantic Avenue

in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

60. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendant P.O. MARIO GIORDANO and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein.

61. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendant P.O. MARIO GIORDANO and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

62. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants and there was contact between the motor vehicle of the defendant, P.O. MARIO GIORDANO, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

63. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants which caused contact between the said motor vehicle of the defendant, P.O. MARIO GIORDANO, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN

EDWARDS, were passengers therein.

64. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants which caused contact between the motor vehicle of the defendant, P.O. MARIO GIORDANO, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

65. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendant CHANCE DEESPINA and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein.

66. That on the 21st day of August, 2013, there was contact between the said motor vehicle of the defendant CHANCE DEESPINA and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

67. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants and there was contact between the motor vehicle of the defendant, CHANCE DEESPINA, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of

Van Siclen Avenue in the County of Kings, City and State of New York.

68. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants which caused contact between the said motor vehicle of the defendant, CHANCE DEESPINA, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein.

69. That on the 21st day of August, 2013, there was contact between the motor vehicles of the defendants which caused contact between the motor vehicle of the defendant, CHANCE DEESPINA, and the said motor vehicle the plaintiffs, RICKIE WILLIAMS and STACY ANN EDWARDS, were passengers therein, upon Atlantic Avenue in the vicinity of Van Siclen Avenue in the County of Kings, City and State of New York.

70. That by reason of the foregoing, the plaintiff RICKIE WILLIAMS was injured.

71. That the foregoing accident and the resulting injuries to the plaintiff RICKIE WILLIAMS were caused solely by reason of the carelessness, negligence, recklessness, wanton and willful disregard on the part of defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. MARIO GIORDANO, KEVIN SUAREZ and CHANCE DEESPINA, without any negligence on the part of the plaintiff contributing thereto.

72. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and/or in the future will necessarily suffer additional loss of time and earnings from his employment; and plaintiff will be unable to pursue his duties with the same degree of efficiency as prior to this accident, all to the plaintiff's great damage.

73. That as a result of the foregoing, this plaintiff suffered a serious injury as defined by Section 5102(d) of the Insurance Law of the State of New York.

74. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for such economic losses as are not included within the definition of 'basic economic loss' as set forth in Section 5102(a) of the Insurance Law of the State of New York.

75. That plaintiff is a 'covered person' as defined by Section 5102(j) of the Insurance Law of the State of New York.

76. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for all

economic losses sustained.

77. That this action falls within one or more of the exceptions set forth in C.P.L.R. 1602.

78. Pursuant to CPLR Section 1602 (2) (iv), the above captioned defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

79. Pursuant to CPLR Section 1602 (7), the defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless and wanton disregard of the safety of others.

80. Pursuant to CPLR Section 1602 (6), the defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants should be held liable by reason of defendants' respective use, ownership and/or operation of a motor vehicle.

80(a). That heretofore, and on/or about

November 15, 2013 and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff containing the name and post-office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

81. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendants.

82. That the said defendants were negligent and have refused and neglected to adjust, settle and pay the same.

83. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

84. That all conditions and requirements precedent to the commencement of this action have been complied with.

85. That by reason of the foregoing, plaintiff RICKIE WILLIAMS has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF STACY ANN EDWARDS:**

86. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

87. That on the 21st day of August, 2013, the plaintiff STACY ANN EDWARDS was a passenger in the motor vehicle of motor vehicle being operated by LEROY ATKINS.

88. That as a result of the accident on the 21st day of August, 2013, the plaintiff, STACY ANN EDWARDS, was injured.

89. That the foregoing accident and the resulting injuries to the plaintiff, STACY ANN EDWARDS, were caused solely by reason of the carelessness, negligence, reckless, wanton and willful disregard on the part of the defendants and without any negligence on the part of the plaintiff, STACY ANN EDWARDS, contributing thereto.

90. That this action falls within one or more of the exceptions set forth in CPLR 1602. Plaintiff defers all issues of law to the Court for resolution at the time of trial.

91. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

92. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendant acted with reckless disregard of the safety of others.

93. Pursuant to CPLR Section 1602(6), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendant should be held liable by reason of defendant's use, ownership or operation of a motor vehicle.

94. Pursuant to CPLR Section 1602 (2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR

Section 1601, by reason of the fact that defendant should be held vicariously liable for the negligent acts and omissions of the defendant operators of said vehicles.

95. That by reason of the foregoing, the plaintiff, STACY ANN EDWARDS, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and/or in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

96. That as a result of the foregoing, this plaintiff suffered a serious injury as defined by Section 5102(d) of the Insurance Law of the State of New York.

97. That plaintiff is a 'covered person' as defined by Section 5102(j) of the Insurance Law of the State of New York.

98. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for such economic losses as are not included within the definition of

'basic economic loss' as set forth in Section 5102(a) of the Insurance Law of the State of New York.

99. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for all economic losses sustained.

100. That heretofore, and on/or about November 15, 2013 and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff containing the name and post-office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT and, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

101. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendants.

102. That the said defendants were negligent and have refused and neglected to adjust, settle and pay the same.

103. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

104. That all conditions and requirements precedent to the commencement of this action have been complied with.

105. That by reason of the foregoing, plaintiff, STACY ANN EDWARDS, has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION:

106. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

107. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, its agents, servants and/or employees to supervise and entrust the use of its said motor vehicle to suitable, competent,

qualified, experienced, trained, diligent and adequate persons.

108. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK, its agents, servants and/or employees to properly and adequately supervise and ensure that its said motor vehicle was entrusted, for use and operation as a vehicle, to persons, who were fit, suitable, properly trained and instructed.

109. That at all times hereinafter mentioned, it was the duty of the said defendant THE CITY OF NEW YORK, its agents, servants and/or employees to ensure that said motor vehicle was not entrusted, for use and operation as a vehicle, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicle.

110. That by reason of the negligence of the said defendant THE CITY OF NEW YORK, its agents, servants and/or employees in negligently supervising and entrusting said motor vehicle to defendant P.O. MARIO GIORDANO, the plaintiffs were caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in

any way contributing thereto, thereby causing plaintiffs extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

111. That at all times herein mentioned, it was the duty of the defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees to supervise and entrust the use of its said motor vehicle to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

112. That at all times herein mentioned, it was the duty of the defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees to properly and adequately supervise and ensure that its said motor vehicle was entrusted, for use and operation as a vehicle, to persons, who were fit, suitable, properly trained and instructed.

113. That at all times hereinafter mentioned, it was the duty of the said defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees to ensure that said motor vehicle was not entrusted, for use and operation as a vehicle, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with

emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicle.

114. That by reason of the negligence of the said defendant NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees in negligently supervising and entrusting said motor vehicle to defendant P.O. MARIO GIORDANO, the plaintiffs were caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiffs in any way contributing thereto, thereby causing plaintiffs extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

115. That at all times herein mentioned, it was the duty of the defendant, KEVIN SUAREZ, his agents, servants and/or employees to supervise and entrust the use of its said motor vehicle to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

116. That at all times herein mentioned, it was the duty of the defendant, KEVIN SUAREZ, his agents, servants and/or employees to properly and adequately supervise and ensure that its said motor vehicle was entrusted, for use and operation as a vehicle, to persons, who were fit, suitable,

properly trained and instructed.

117. That at all times hereinafter mentioned, it was the duty of the said defendant, KEVIN SUAREZ, his agents, servants and/or employees to ensure that said motor vehicle was not entrusted, for use and operation as a vehicle, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicle.

118. That by reason of the negligence of the said defendant, KEVIN SUAREZ, its agents, servants and/or employees in negligently supervising and entrusting said motor vehicle to defendant CHANCE DEESPINA, the plaintiffs were caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiffs extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

119. That at all times herein mentioned, it was the duty of the defendant KEVIN SUAREZ, his agents, servants and/or employees to supervise and entrust the use of

its said motor vehicle to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

120. That at all times herein mentioned, it was the duty of the defendant KEVIN SUAREZ, his agents, servants and/or employees to properly and adequately supervise and ensure that its said motor vehicle was entrusted, for use and operation as a vehicle, to persons, who were fit, suitable, properly trained and instructed.

121. That at all times hereinafter mentioned, it was the duty of the said defendant KEVIN SUAREZ, his agents, servants and/or employees to ensure that said motor vehicle was not entrusted, for use and operation as a vehicle, to a person who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities or with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicle.

122. That by reason of the negligence of the said defendant KEVIN SUAREZ, his agents, servants and/or employees in negligently supervising and entrusting said motor vehicle to defendant CHANCE DEESPINA, the plaintiffs were caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiffs in any

way contributing thereto, thereby causing plaintiffs extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

AS AND FOR A FOURTH CAUSE OF ACTION:

123. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

124. That on the 21st day of August, 2013, and at the time of this accident, the defendants P.O. MARIO GIORDANO and CHANCE DEESPINA, were operating their respective motor vehicles in excess of the posted speed limit for the City of New York, and in a reckless, wanton and grossly negligent manner.

AS AND FOR A FIFTH CAUSE OF ACTION:

125. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

126. That on the 21st day of August, 2013, and at the time of this accident, the defendant, CHANCE DEESPINA, was intoxicated, impaired and/or not capable or competent to safely operate a motor vehicle.

127. That by reason of all of the foregoing, the defendant acted maliciously and was guilty of wanton and willful disregard of the rights, well-being and safety of other persons, particularly of the plaintiff herein, and by reason thereof the plaintiff demands exemplary and punitive damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

128. That by reason of all of the foregoing, the defendants, and each of them, were guilty of wanton and willful disregard of the rights, well-being and safety of other persons, particularly of the plaintiffs herein, and by reason thereof the plaintiff demands exemplary and punitive damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

129. That by reason of the foregoing, the plaintiffs RICKIE WILLIAMS and STACY ANN EDWARDS have been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

WHEREFORE, Plaintiffs demands judgment against the Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT., P.O. MARIO GIORDANO, KEVIN SUAREZ and CHANCE DEESPINA, on all Causes of Actions set forth herein in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action, together with costs and disbursements of this action, and with interest from the date of this accident.

Dated: New York, New York
November 17, 2014

Yours, etc.,

FEINSTEIN & FEINSTEIN, ESQS.
Attorneys for Plaintiffs
WILLIAMS & EDWARDS

BY:

A handwritten signature in cursive script, appearing to read "Charles Feinstein", written over a horizontal line.

CHARLES FEINSTEIN, ESQ.
61 Broadway, Suite 2820
New York, New York 10006
(212) 363-3000

ATTORNEY'S VERIFICATION BY AFFIRMATION

I, CHARLES FEINSTEIN, ESQ., am an attorney duly admitted to practice in the courts of New York State, and say that: I am the attorney of record, or of counsel with the attorney(s) of record, for the plaintiff(s), I have read the annexed **COMPLAINT**, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following: Reports, records, memoranda, facts, investigations and pertinent data given to your affirmant and maintained in a file in his office.

The reason I make this affirmation instead of plaintiff is because plaintiff is not within the County where your affirmant maintains his office.

Dated: NEW YORK, NEW YORK
November 17, 2014



CHARLES FEINSTEIN, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICKIE WILLIAMS and STACY ANN EDWARDS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. MARIO GIORDANO,
KEVIN SUAREZ and CHANCE DEESPINA,

Defendants.

-----X

ATTORNEY CERTIFICATION PURSUANT TO 22 NYCRR 130-1.1a

Pursuant to 22 NYCRR 130-1.1a, the undersigned, CHARLES FEINSTEIN, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, certifies that, upon information and belief, and after reasonable inquiry, (1) the contentions contained in the annexed document(s) are not frivolous and that (2) if the annexed document(s) is an initial pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: New York, New York
November 17, 2014


CHARLES FEINSTEIN, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RICKIE WILLIAMS and STACY ANN EDWARDS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT
P.O. MARIO GIORDANO, KEVIN SUAREZ and CHANCE DEESPINA,

Defendants

SUMMONS AND VERIFIED COMPLAINT

FEINSTEIN & FEINSTEIN

Attorneys for Plaintiffs – **WILLIAMS & EDWARDS**

61 BROADWAY
NEW YORK, NEW YORK 10006
(212) 363-3000

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:

Signature

Print Signer's Name.....

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

FEINSTEIN & FEINSTEIN

Attorneys for

To:

61 BROADWAY
NEW YORK, NEW YORK 10006
(212) 363-3000